

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Order Dismissing Appeal for Untimely Notice

Filed: March 11, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Jurisdictional review of a late civil notice of appeal.

**Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and
Meridian Silt Holdings, LLC, Appellees.**

The Court reviews its jurisdiction on the transmitted district docket. The district court entered a separate partial judgment on February 4, 2026 after making an express and supported determination under Federal Rule of Civil Procedure 54(b). The judgment was immediately appealable under 28 U.S.C. § 1291.

Asterglen filed its notice of appeal on March 9, 2026. Because this is a civil action without the United States or its officer or agency as a party, Federal Rule of Appellate Procedure 4(a)(1)(A) and 28 U.S.C. § 2107 required notice within thirty days after entry. The statutory time limit is jurisdictional. A court of appeals cannot enlarge it based only on equitable considerations.

The transmitted docket identifies no earlier notice that could satisfy the statutory period, and Asterglen does not contend that another paper filed by March 6 supplied the functional equivalent of a notice of appeal.

Calculation and Absence of Authorized Relief

The day of entry, February 4, is excluded. Counting thirty consecutive calendar days produces Friday, March 6, 2026 as the last day. Because March 6 was neither a Saturday, Sunday, nor legal holiday, no carry-forward rule applies. Monday, March 9 was the first business day after the intervening weekend, but it was not the next permissible day after a weekend deadline. It was three days late.

The record shows no timely motion identified in Rule 4(a)(4) that altered the start of the appeal period. It also shows no district-court order extending time under Rule 4(a)(5) and no reopening under Rule 4(a)(6). The March 9 notice expressly disclaimed an already granted extension and did not contain a developed request upon which the district court had ruled.

The validity of the Rule 54(b) certification does not excuse untimeliness. In this posture, valid certification made the February 4 judgment final and started the ordinary appeal clock. Nor does the merits significance of Section 9.2 authorize us to disregard the statutory limit.

Accordingly, the notice failed to invoke appellate jurisdiction.

Disposition

This appeal is DISMISSED for lack of jurisdiction because the notice of appeal was not filed within the time prescribed by 28 U.S.C. § 2107 and Federal Rule of Appellate Procedure 4(a)(1) (A). We do not reach Asterglen's argument concerning Virginia contract law, Section 9.2, cure feasibility, the \$480,000 demand, or the district court's summary-judgment reasoning.

The dismissal leaves the district court's February 4 partial judgment intact. Count I remains dismissed with prejudice. Narrowed Count II against Meridian Silt remains pending in the district court, and Copper Kestrel's former counterclaim remains dismissed with prejudice.

Each side shall bear its own costs because the dismissal results from a jurisdictional filing defect and no appellee merits briefing was required. The Clerk shall enter judgment contemporaneously with this order. Unless a timely rehearing petition, mandate-stay motion, or court order alters the schedule, mandate will issue under Federal Rule of Appellate Procedure 41 after the Rule 40 rehearing period and the ensuing seven-day interval.

Entered March 11, 2026.

BY THE COURT Judicial signature designation